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**Is Suffering Enough? Challenging the Utilitarian
Test for Moral Status**

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In chapter 9 of "The Fundamentals of Ethics" by Shafer-Landau, it is stated that the utilitarian test for understanding who gains entry in the moral community is whether a being can suffer. This requires the utilitarian to accept the Argument from Marginal Cases-that we should discipline ourselves and treat animals the same as marginal humans. In this paper, I will argue that the ability to suffer to an equal extent, by itself, cannot be sufficient to apply the same moral laws to marginal humans as to animals. I will construct an argument that ridicules this belief using related concepts presented in the Argument from Marginal cases, as well as create a scenario to assess the role of human autonomy in this matter.

The Argument from Marginal Cases usually is not an easy one to digest, and it provokes different responses in people:

- “1. If it is immoral to kill and eat “marginal” human beings, and to painfully experiment on them, then it is immoral to treat nonhuman animals this way.
2. It is (almost) always immoral to kill and eat “marginal” human beings, and to painfully experiment on them.
3. Therefore, it is (almost) always immoral to kill and eat animals, and to painfully experiment on them.”

By using extreme acts like killing, eating and experimenting, it becomes hard not to be persuaded at least to some extent. Some groups might find it easier to accept this conclusion, for example, vegans and vegetarians. Others have a hard time coming to terms with this, and some even recognize that the argument is valid, but find that the validity alone doesn't persuade them to follow the path the conclusion draws in their everyday lives. They don't seem to suddenly become vegetarians upon reading it. Perhaps there is something more to this than just difficulty to stay logically consistent and convince ourselves to treat animals and marginal humans morally equally.

The chapter further explains the definition of a marginal human - “(..) those whose mental lives are no more developed than those of the non-human animals we routinely eat and experiment on.” Utilitarianism also argues that “If an animal suffers to the same extent as a human, that is an equal misfortune.” From this, the Argument from Marginal Cases is constructed on the basis that, first, marginal humans are cognitively comparable to animals, and second, due to this cognitive comparison, they can suffer to the same extent, therefore, their suffering is an equal amount of misfortune. So far, this reasoning seems plausible. Where I disagree, however, is for the utilitarian test to be the only parameter involved in determining one's moral status. This objection becomes quite intuitively clear, when the same idea of the Argument from Marginal Cases is put in a different, less extreme context.

Suppose that animals and marginal humans are cognitively comparable in terms of the extent to which they can suffer. With this in mind, we can construct an argument that exploits the same structure and ideas used in the Argument from Marginal Cases:

1. The cognitive capacity to suffer alone determines moral treatment.
2. If it is morally right to command, train, and play fetch with animals, it is permissible to treat cognitively equal marginal humans that way.
3. We find it morally intuitively permissible to command, train and play fetch with animals.
4. Therefore, it is permissible to command, train, and play fetch with marginal humans, since they can be treated the same way.

If it is the case that the only thing determining a being's membership to the moral community is the ability to suffer, then the conclusion of this argument has to follow. But is agreeing with this argument still only a matter of maintaining logical consistency? This seems intuitively implausible. The argument seems too ridiculous. We seem to automatically assign different treatment norms to animals and marginal humans, not to mention "regular" humans. We even think that this treatment is sometimes for the betterment of animals-we keep them in our houses and yards "for their own good," but doing this to a marginal human would be considered imprisonment.

The nature of this argument brings out an important aspect of our dual-standard treatment towards animals and marginal humans. In modern society, most people agree that we shouldn't treat a human with decreased cognition any differently and definitely not worse than we treat a regular human. We want to respect their autonomy or at least the partial autonomy that is accessible to them given their disability, and do the best in our ability to integrate them in society. Doing the opposite is considered discrimination, and this stands even if their disability renders them unaware of the fact that the treatment they are receiving is unusual and marginalised.

Picture a person A in a park telling a cognitively disabled adult B to sit, spin around, roll and go fetch a stick on command. You walk by and tell person A to stop, but in return they respond: "It's okay, they don't mind. Look, they're happy!" Indeed person B doesn't seem to be crying, resisting, just following orders, maybe they even have a big smile on their face. Perhaps the commander says something along the lines of: "They can't mind. They're comparable to an animal." Is the fact that person B doesn't mind, or for that matter, is unable to, sufficient to morally justify the actions of person A? In this scenario, it seems reasonable to ask whether this treatment truly benefits person B, and not only in the short-term joy that they might receive by being treated like an animal due to the circumstances of their condition. It's not a leap to assume that people with these cognitive challenges (depending on their severity) would generally be better off with treatment that brings them equivalent joy as discussed in the example without marginalising them from the rest of society. Doing the opposite digs the ravine between them and

everyone else deeper than it needs to be. Adults with such conditions in various cases don't like it when they are talked to in the same intonation as one talks to a small child, let alone treated like an animal! It suggests that humans put value in the autonomy of others when deciding what kind of moral treatment one deserves, even if the autonomy in question is limited.

A way to object to the fetch-marginal case argument is to challenge the morality of the very concept of household pets and domesticated animals. One could say that such treatment is not beneficial to animals and argue that they would be better off living in the wild-free, and undomesticated. Were this to be true, it would solve the previously mentioned case of the commander and cognitively disabled adult-it would render all current animal-human relationship dynamic practices (including training/commanding) as intrinsically immoral. However, in return, this objection could be argued against using the main principle utilitarianism preaches-justifying the actions that bring about the most utility and overall wellbeing. It isn't unrealistic to think that, due to this human-animal relationship dynamic and the fact that it has been present for hundreds and thousands of years, a lot of human historical advancements have carried over into the lives of animals. This has increased their life spans, medical care, food supply and so on, thus increasing overall wellbeing, therefore reasonably justifying this dynamic in the utilitarian framework.

Another objection to consider is one directed towards the context of the “playing fetch” scenario of person A and B. Some may argue that there is nothing intrinsically wrong about the action of playing fetch with a marginal human and that rather what makes it wrong is social humiliation. Perhaps, in a scenario where any potential social humiliation factors are taken away, for example, performing the same acts in an isolated room, there is nothing morally wrong about this act. Still, I'd like to argue that this is immoral due to two reasons, first of which is that the isolated room, and for that matter, any instance where more than one individual is involved, wouldn't get rid of the “social humiliation” factor. Even in an isolated room, there still is another person, person A in this instance, who is projecting this “socially humiliating” animal-human power dynamic. It only takes one observer to have someone receive social humiliation, so as long as person B is not in the room by themselves, the factor still stands. This renders the objection unfalsifiable, since it argues for the social factor as the culprit in an action that by default involves social interaction.

Additionally, the very concept that the wrongness of this action stems from social humiliation seems to be disregarding a crucial point made earlier. This treatment in itself segregates people like person B from the rest of society, even if, perhaps due to the severity of their condition, B doesn't realise it. Our goal isn't to, as mentioned earlier, dig a ravine between these two groups. It is to create the circumstances that allow people like person B to have whatever autonomy they are able to attain for themselves, and, to the best of their ability, participate in everyday life like everyone else. It is to not make them feel any less like outcasts of society than they need to or than they already feel, which is often the case. Doing the opposite is

immoral, regardless of who sees or doesn't. Therefore, the action itself is immoral, not the social circumstances.

In conclusion, I have argued that the ability to suffer to an equal extent alone is not sufficient to place animals in the same moral realm as humans. Accepting the opposite goes strongly against our general intuitions and modern societal norms, as well as disrespects and degrades the autonomy or partial autonomy of cognitively disabled humans, which we seem to put at least some value on when assigning moral treatment. It suggests that there has to be at least an additional, if not a completely different variable that determines a being's membership to the moral community.